DONALD SARUDZAI MAKONI
versus
WAMBUTSO DONALD MAKONI
and
THE PROVINCIAL MINING DIRECTOR MASHONALAND CENTRAL PROVINCE N.O
second RESPONDENT
and
THE MINISTER OF MINES AND MINING DEVELOPMENT N.O

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE; 1 July 2025 and 25 November 2025

Court Application for Eviction.

Ms *Y M Chigodora*, for the Applicant
K B Munakamwe, for 1st Respondent
D Machingauta, for 2nd and 3rd Respondents

TAKUVA J: This is an opposed court application for the eviction of the first Respondent and any other persons claiming occupation.

FACTUAL BACKGROUND

The Applicant, Donald Sarudzai Makoni, is the owner of 8 Tumai mining claims numbers 7,8,9,10,11,12,20,21 by virtue of certificates of registration. The Applicant suffered a stroke which affected his physical ability to attend the mining activities at his mining claims. Thus, the Applicant gave the first Respondent a special power of attorney to manage the mining activities at the then 12 mining claims. The first Respondent is the eldest son of the Applicant, who was given the special power of attorney to act on behalf of the Applicant. The mining activities included entering into contracts, engaging debtors and creditors as well as all statutory and Regulatory authorities in Zimbabwe concerning the claims, without the inclusion of selling the mining claims.

APPLICANT'S CASE

In April 2024 the Applicant alleges that he was surprised that the first Respondent had sold his mining claims without any approval of the sale. The first Respondent refused to remit the $20 000.00 which he had received as deposit for the sale of the claims and had converted the money for his own personal use. In fear that first Responded may continue selling the mining claims Applicant revoked his special power of attorney therefore, his continued presence on the property is now unlawful.

This first Respondent reaction to the revocation has caused havoc at mine, threatening violence to any person who goes to the mine or appointed to manage the mining activities. As a result, this has affected Applicant to realize income because due to fear of the threats made by the first Responded no one is going to the mine.

The Applicant claims that the first Respondent is in illegal occupation of the mining premises as he is in occupation without the consent of the owner of the mining claim. The Applicant also pointed out that he suffered a stroke which affected his physical disability and not his mental ability. Thus, Applicant's mind is fully active, mentally competent and has the capacity to give instructions to craft power of attorney. The Applicant admitted that he gave the deponent, his wife and the mother of the first Respondent a general power of attorney which included authority to handle principal affairs and suing on his behalf.

Additionally, the Applicant is of the opinion that no application ought to have been made by the Applicant prior to the institution of these proceedings because Applicant has mental capacity, thus his capable of executing his affairs without the need of curator. The Applicant further denied that he authorized the sale of any of his mining claims, and when he became aware that first Respondent had sold the mining claims, he revoked the power of attorney that he had given him. The Applicant submits that although he had not authorized his son to sale, but because he had given him a power of attorney to act on his behalf, he could not simply cancel the agreement of sale as this would result in legal and financial consequences. It should be noted that the other son was authorized to continue with the sale because the purchaser had paid $20 000.00 which Applicant would not be able to reimburse if the agreement was to be cancelled.

Therefore, the Applicant seeks for an order that first Respondent and all other persons claiming occupation through him be evicted from the remaining Tumai mining claims. Additionally, the Applicant humbly pray that the application be granted with costs.

first RESPONDENT'S CASE

The first Respondent acknowledges that in February 2011, the Applicant executed a Power of Attorney and authorized him to manage and operate 12 mining claims for and on his behalf. The first Respondent submits that the Applicant know that he's the rightful and only agent and that his occupation on the premises is lawful. Therefore, the first Respondent intends to oppose Applicant's application for eviction in this matter. The first Respondent alleges that the Applicant is a person under disability, he succumbed to stroke in 2021 to an extent that he cannot speak, write or give any instructions for the preparation or execution of any legal documentation.

The first Respondent denies that he had acquired agency subsequent to Applicant's illness, the authority to manage and operate the mine was acquired way before his illness in 2021. The deponent and Shongai Macdonald Makoni acquired agency after Applicant's illness. Furthermore, the first Respondent is of the view that the Applicant is not and cannot be the author of the Power of Attorney, Annexure A. The first Respondent also asserts that Annexure A does not give the deponent powers to litigate on behalf of the Applicant and indicated that due to Applicant's disability, a certain application should have been made prior to institution of present proceedings, which was not done.

The first Respondent alleges that the Applicant was aware of the sale on 14th April 2024, and he duly authorized it. The deponent failed to disclose that on 16 April 2024, Applicant purported to revoke first Respondent's agency and appointed his other son, Shonai Macdonald Makoni who continued with the initial sale dated 14th April.

The first Respondent denies that he never diverted the funds as alleged by the Applicant. The first Respondent disputes that Applicant is the one who instituted the proceedings on the basis that as a person with a disability he does not have the legal capacity to sue on his own. The first Respondent strongly believes that it is the deponent who's seeking costs on a legal practitioner and client scale. Thus, first Respondent submits that the application for eviction should be dismissed with costs on attorney and client scale with the deponent to Applicant's founding affidavit bearing the costs personally.

Second and third Respondent's case

The second and third Respondents are not opposed to the relief being sought by the Applicant.

ISSUES FOR DETERMINATION

1. Whether the first Respondent has any right of retention or legal right to hold onto Applicant's property.
2. Whether Applicant's physical disability affects his mental capacity to institute proceedings.

THE LAW AND ANALYSIS

1. Whether the first Respondent has any right of retention or legal right to hold onto Applicant's property.

The background to this dispute stems from the special power of attorney which the Applicant had granted to the first Respondent to manage the mining activities at the then 12 mining claims in Guruve.

In a decided Supreme Court case of *Nyahora* v *CFI Holdings (Pvt) Ltd SC* 81/14, it provides that the actio *rei vindicatio* is available to an owner of property who seeks to recover it from a person in possession of it without his consent. The basis of this principle is that an owner cannot be deprived of his property against his will, and he has a legal right to recover from anyone in possession without his consent.

Additionally, requirements of rei vindicatio were set out in *Chetty* v *Naidoo 1974* 3 SA 13 (A);

> "The owner in instituting a rei vindicatio, need, therefore, do no more than allege and prove that he is the owner, and that the defendant is holding the re- the onus being on the defendant to allege and establish any right to continue to hold against the owner…"

Therefore, to succeed with rei vindicatio action, the Applicant needs to prove that he's the rightful owner of property and that the Respondent is in possession of the property in question without their consent. In this matter the question of ownership of the mining claims is not in dispute, it is clear that Applicant is the rightful owner of the mining claims and the fact that Respondent is occupying the premises although the lawfulness of his occupation is in question.

On the other hand, the onus then shifts to the first Respondent to justify his occupation in which he argues that the Applicant is aware that he's the rightful, only agent and that his occupation of the premises is lawful. The first Respondent relies on the fact that he was given power of attorney to occupy and carry out mining activities and he denies that the Applicant himself authorized the application for eviction against him. The problem with this argument is that the power of attorney that was given to him was revoked which means that he no longer has any legal rights to be in charge of the activities and is unlawfully occupying the mine.

I am satisfied *in casu,* that the first Respondent is no longer Applicant's agent and has no right to hold on to the property when Applicant revoked his power of attorney. Therefore, Applicant, as the rightful owner of the mining claims he has the right to claim possession of his property from the first Respondent and anyone who is claiming occupation. The Applicant has clearly indicated that he wishes for the first Respondent to vacate from his mining premises. The Applicant contends that he had given first Respondent authority to run all mining activities excluding selling of any claims, however, Applicant revoked his power of attorney. Thus, the first Respondent is no longer authorized to carry out the mining activities on his behalf and no longer has legal basis to continue staying on the mining premises without the consent of the Applicant.

2. **Whether the Applicant's physical disability affects his mental capacity to institute proceedings.**

The central question before this Court is whether the Applicant's physical disability affects his mental capacity to institute legal proceedings against the first Respondent. In terms of Section86(1)(2) of the Mental Health Act, a curator *ad litem* will be appointed to act on behalf of a mentally ill person or intellectually handicapped. However, in this case it is important to consider that although the Applicant suffered a stroke which affected his physical ability, his mind is fully active and mentally competent to give instructions to craft a power of attorney. Thus, the Applicant has the mental capacity to give the deponent, his wife and the mother of the first Respondent a general power of attorney, which provides the agent with a broad scope of authority to handle almost all the principal's affairs, which includes suing on his behalf.

In the case of *Lange* v *Lange 1945 AD 332***,** it was pointed out that a person is mentally ill if he cannot understand the nature and consequences of the transaction he is entering, or he does

understand the nature and consequences of the transaction but is motivated by delusions caused by a mental illness. However, in this case the Applicant physical disability does not equate to mental incapacity as Applicant can institute legal proceedings through his agent. This means that there's no application that must have been made by the Applicant before instituting the proceedings, because Applicant is able to execute his affairs without the need of a curator.

Furthermore, the notary public acknowledges that the Applicant is physically unable to affix his signature on the revocation of special power of attorney against first Respondent. However, Applicant was able to use his thumb print as his signature, which indicates that he's able to acknowledge and comprehend what he was doing. Therefore, the revocation of Special Power of Attorney dated 16 April 2024, granted to first Respondent is valid and enforceable. The effect of the revocation is that it stops the first Respondent from having authority to transact anything on behalf of the Applicant and his occupation at the premises is now unlawful.

It is also important to note that the Applicant in this matter is mentally competent and has the legal capacity to provide instructions to create a power of attorney thus, the deponent to Applicant's founding affidavit was duly authorized to represent the Applicant in the proceedings. Thus, the law aims to ensure that persons with disabilities are treated fairly, respecting their dignity and rights.

DISPOSITION

Having considered the heads of argument and the relevant authorities, l am satisfied that the first Respondent is no longer Applicant's agent and has no right to hold on to the property when Applicant revoked his power of attorney. Therefore, Applicant as the owner of the mining claims, he cannot be deprived of his property against his will, and he has a legal right to recover it from the first Respondent. Additionally, the first Respondent failed to demonstrate a reasonable defence on the lawfulness of his stay on the mining premises. Thus, he does not have any legal right to cling on the property. The Applicant has made an application for eviction, against the first Respondent and all those claiming occupation through him shall vacate from Tumai mining claims.

The Applicant although physically disabled he's of sound mind and mentally competence which means that there's was no need to make an application for the appointment of a curator.

ORDER

1. The first Respondent and all those claiming occupation shall vacate from Tumai mining claims numbers 7,8,9,10,11,12,20 and 21, Guruve within 14 (fourteen) days of this order, failing which the Sheriff or his deputy is hereby authorized and empowered to evict the respondent or any person claiming occupation through him from the mining claims.

2. The first Respondent shall pay Applicant costs of suit.

TAKUVA J:.....

M D Hungwe Attorneys At Law, Applicant's Legal Practitioner
Sawyer & Mkushi, 1st Respondent's Legal Practitioner
Civil Division of The Attorney General, 2nd and 3rd Respondents' Legal Practitioner